

United States District Court for the District of South Carolina

Piedmont Booksellers Guild v. City of Norvale

Case No. SYN-DSC-26-CV-0107 · Preliminary-Injunction Hearing Transcript

Hearing held January 19, 2026

COURTROOM DEPUTY: All rise. The United States District Court for the District of South Carolina is now in session. The matter is *Piedmont Booksellers Guild v. City of Norvale*, civil action SYN-DSC-26-CV-0107, on the plaintiff's motion for a preliminary injunction.

THE COURT: Good morning. Please be seated. Will counsel identify their appearances for the recording?

GUILD COUNSEL: Good morning, Your Honor. Counsel for the Piedmont Booksellers Guild. With me at counsel table is executive director Miriam Bellweather.

CITY COUNSEL: Good morning. Counsel for the City of Norvale. Events Director Celia Voss and Lieutenant Rowan Pike are present.

THE COURT: I have read the verified complaint, answer, motion, opposition, reply, declarations, municipal materials, site compilation, and Friday's stipulation. The question today is preliminary relief. No party should treat a question from the bench as a final finding, and the merits remain open for ordinary development. Is there any request to exclude witnesses?

CITY COUNSEL: No, Your Honor. The declarants are party representatives or witnesses whose testimony overlaps the submitted declarations.

GUILD COUNSEL: No request from the Guild.

THE COURT: We will address the record first, then limited testimony, then argument under *Winter*. Counsel should distinguish the legitimacy of the City's interests from the fit of the challenged means. The Court understands the Guild does not allege viewpoint animus and the City does not contend that paid literary speech is unprotected. If either understanding is wrong, correct me now.

GUILD COUNSEL: Both are accurate.

CITY COUNSEL: Agreed.

Preliminary Matters and Evidentiary Record

THE COURT: The parties submitted a joint list. Guild Exhibits 1 through 6 are the ordinance compilation, legislative history, permit-history summary, declarations of Bellweather, Tessa Wren, and Omar Finch, and the site, calendar, reservation, and dispatch compilation. The numbering in the list groups related declarations under one item. City Exhibits A and B are the declarations of Voss and Pike. The January 16 stipulation and alternatives chart is Joint Exhibit 1. Have I described the offered materials correctly?

GUILD COUNSEL: Yes. We also ask that the verified complaint be considered to the extent based on Ms. Bellweather's personal knowledge.

CITY COUNSEL: We do not contest authenticity for this hearing. We preserve weight, legal relevance, and the answer's denials. We object to treating a descriptive photograph caption as a continuous crowd count or the dispatch abstracts as proof that no unrecorded preventive work occurred.

GUILD COUNSEL: Those limitations are acceptable. We make the reciprocal point that staff recollection of ordinary crowding is not a measured incident attributable to a paid author.

THE COURT: The exhibits are admitted for purposes of the preliminary-injunction record, subject to those stated limitations. The photographs show the identified moments and physical relationships, not conditions throughout every event. Dispatch abstracts establish the two calls recorded, not an exhaustive account of employee activity. The legislative and administrative compilations show what staff considered and recorded, without conclusively proving every disputed inference.

The parties stipulate that no reported violence is attributed to a Guild fair, two minor medical responses occurred, and routine unloading or pedestrian congestion appears in the files. They dispute the significance of that history and whether paid status is an appropriate coverage line. Joint Exhibit 1 will be received on exactly those terms. Any further objection?

CITY COUNSEL: None.

GUILD COUNSEL: None.

Guild's Opening Presentation

GUILD COUNSEL: The ordinance puts a price and early identity requirement on compensated expression even though the City's witnesses agree that payment does not predict a crowd. The Guild can provide dates, layout, total attendance, loading, access, the reading area, and an evolving schedule. It seeks an order allowing Norvale to regulate all of those physical facts while preventing enforcement of the name, topic, deadline, and speaker charge when a late author does not change them.

THE COURT: Your proposed order also challenges the \$240 base amount. Is that because you say it is charged only when the event includes a paid speaker?

GUILD COUNSEL: Correct. We do not say every park application must be free. We say the additional covered-event process turns on compensation. If the City charged a comparable neutral site-review fee to comparable gatherings, that would present another question.

THE COURT: What is the concrete February injury if no named amendment has been denied?

GUILD COUNSEL: The invitation must precede the amendment. An author who cannot receive a definite offer may go elsewhere. The forty-five-day point was December 31. Section 7 supplies neither a response deadline nor a rule for an unchanged substitution. Ms. Bellweather will explain the decisions being made now.

THE COURT: And facial relief?

GUILD COUNSEL: The complaint pleads facial and as-applied claims. Interim relief can be confined to the Guild's six dates. The Court need not decide every application involving a different organizer.

CITY COUNSEL: May I briefly respond? The Guild's requested language risks barring schedule information the City actually uses. No one has refused a February author. Staff can review an unchanged substitution quickly, and the event remains able to proceed.

THE COURT: I understand. Call your first witness.

Testimony of Miriam Bellweather — Direct Examination

COURTROOM DEPUTY: Please raise your right hand. Do you swear or affirm that the testimony you give will be true?

BELLWEATHER: I do.

GUILD COUNSEL: State your position and what you do for the Guild.

BELLWEATHER: I have been executive director since 2018. I coordinate the fairs, communicate with the City, maintain the budget, and work with member stores and authors. The Guild has held Cedar Commons fairs since 2019.

GUILD COUNSEL: Describe a usual fair.

BELLWEATHER: Between eighteen and twenty-eight sellers use temporary tables or tents. We have four to seven author sessions. A reading is usually about twenty minutes and may be followed by questions. The public pays no admission and no charge for a program. We offer modest honoraria because preparation and travel are work and because not every author can volunteer.

GUILD COUNSEL: When is the physical plan known?

BELLWEATHER: Earlier than the author list. We know the site, general vendor range, reading area, loading proposal, and emergency route. We can revise chair or signing placement if there is a specific concern. Authors may confirm after a nearby stop is arranged, a publisher approves travel, or a family responsibility becomes clear.

GUILD COUNSEL: Does a different author always change attendance?

BELLWEATHER: No. Sometimes it might, and we would report a materially different estimate. Often the substitute uses the same twenty-minute slot and the same chairs. A lesser-known paid author can draw fewer people than an unpaid librarian.

THE COURT: Are you asking to withhold schedule changes?

BELLWEATHER: No. We can update time, format, equipment, location, and audience. We object to uncertainty that depends on the person's compensation and identity when those physical facts stay fixed.

Bellweather — Timing and Financial Effect

GUILD COUNSEL: What are the 2026 dates?

BELLWEATHER: February 14, April 11, June 13, August 8, October 10, and December 12.

GUILD COUNSEL: What happened at the February filing point?

BELLWEATHER: December 31 arrived while invitations were unresolved. We had a familiar layout and could estimate sellers and attendance, but we could not responsibly state every final author. The City told us to request later changes and said it could not promise acceptance in advance.

GUILD COUNSEL: Has anyone at the City objected to a book or viewpoint?

BELLWEATHER: No. That is not my allegation.

GUILD COUNSEL: Explain the charges.

BELLWEATHER: A six-author date is \$240 plus six times \$45, or \$510. Six dates at that count would be \$3,060. Our event account also pays honoraria, tents, insurance, accessibility supplies, and participation support. Repeated charges mean we consider fewer speakers, lower honoraria, or larger seller contributions.

CITY COUNSEL: Objection to “mean” as speculation about future choices.

THE COURT: Overruled as to this witness's own budgeting decisions. She may not speak for unidentified members without a basis.

GUILD COUNSEL: What decisions have you made?

BELLWEATHER: I have delayed offers and considered reducing sponsored appearances. Tessa Wren told me her shop may attend fewer dates if contributions rise, and her own declaration is in evidence. I cannot recover an author conversation after the scheduled Saturday passes.

THE COURT: Is \$3,060 certain?

BELLWEATHER: No. It is the published calculation if all six dates have six paid authors. Our range is four to seven, so the total could differ.

Bellweather — Cross-Examination

CITY COUNSEL: The Guild sells books at these fairs, correct?

BELLWEATHER: Member vendors sell books. The public program remains free.

CITY COUNSEL: And a scheduled reading can gather listeners in a way that individual table conversations do not?

BELLWEATHER: Yes, a scheduled session can gather people at a time and place.

CITY COUNSEL: You agree the City may ask when that happens, where chairs will be, and how many people you expect?

BELLWEATHER: Yes.

CITY COUNSEL: You also agree that a new author with a larger expected audience or new equipment might require review?

BELLWEATHER: Yes. Our position is that the change should be evaluated on those facts.

CITY COUNSEL: The City has never told you that a critical book cannot be presented?

BELLWEATHER: Correct.

CITY COUNSEL: And it has not issued a written denial of a named February substitute?

BELLWEATHER: Not as of today. We do not yet have every confirmation needed to make such a request.

CITY COUNSEL: Your budget has not been submitted with bank statements or audited financials, has it?

BELLWEATHER: No. My declaration gives the event amounts and choices I administer.

CITY COUNSEL: The Guild could use an unpaid speaker?

BELLWEATHER: It could ask, but some authors cannot afford that and we believe their labor should be paid.

CITY COUNSEL: It could seek another site?

BELLWEATHER: A site may exist, but it would not necessarily provide the established audience, central location, or same access.

CITY COUNSEL: You agree a public announcement does not itself reserve Cedar Commons?

BELLWEATHER: Yes. We remain subject to neutral reservation priority.

Bellweather — Questions from the Court

THE COURT: Suppose the City required a presentation schedule for all planned audience sessions, paid or unpaid, but asked only time, format, location, and expected attendance. Would the Guild object?

BELLWEATHER: We would need to see the exact rule, but those questions match how we plan. Our principal objection here is tying cost and early finality to compensation, identity, and subject.

THE COURT: What minimum notice could you reliably give for a late addition?

BELLWEATHER: We would notify the City as soon as we had a commitment. Sometimes that is several weeks out, sometimes less. We can provide the physical details with the notice.

THE COURT: If staff had three business days to respond to an unchanged substitution, would that resolve the concern?

BELLWEATHER: It would materially reduce uncertainty. It would not resolve the per-speaker charge or why identity and topic are required when the slot is unchanged.

THE COURT: The historical range is four to seven paid authors. Is that also your February estimate?

BELLWEATHER: Yes, subject to availability.

THE COURT: Have you promised to keep the service entrance open and use a loading cutoff?

BELLWEATHER: Yes. Those are ordinary parts of our plan.

CITY COUNSEL: May I clarify one point? The ordinance's topic can be merely a format phrase.

BELLWEATHER: I understand that instruction. The form still asks us to identify the author's planned subject or format at a fixed point. Format alone would be less concerning.

THE COURT: Anything further?

GUILD COUNSEL: No. The Guild calls Omar Finch.

Testimony of Omar Finch — Site Operations

COURTROOM DEPUTY: Do you swear or affirm that your testimony will be true?

FINCH: I do.

GUILD COUNSEL: What is your role?

FINCH: Since 2020 I have volunteered as logistics organizer. I draw the site plan, assign vendor spaces, coordinate unloading, preserve access routes, and communicate with City personnel during many fairs.

GUILD COUNSEL: Identify the site compilation.

FINCH: I supplied the photographs and the route diagram. The diagram is not to scale. It shows Laurel Street, Market Lane, the library walk, the fountain, the service entrance, vendor perimeter, reading chairs, and a separated signing point. The written captions accurately describe what each view shows.

GUILD COUNSEL: What conditions have you observed?

FINCH: Routine ones. A vehicle may linger during unloading, a box may narrow a route, or listeners may cross paths when a reading ends. We redirect people and move objects. I was present for the dizziness response and kept the access route open. I know of the curb fall from the records. I have not seen violence.

GUILD COUNSEL: What information helps you manage a reading?

FINCH: Time, duration, likely audience, chairs, signing location, equipment, and whether another activity overlaps. The author's pay or viewpoint does not change my diagram. A new demonstration or larger crowd might.

THE COURT: Can ordinary conditions always be solved by your preferred layout?

FINCH: I cannot promise that. Construction, a conflicting use, or new traffic information could require another arrangement. I can respond better when the City identifies the condition and requested adjustment.

Finch — Cross-Examination and Court Questions

CITY COUNSEL: You are not responsible for police staffing or bus operations, correct?

FINCH: Correct.

CITY COUNSEL: You do not continuously count pedestrians?

FINCH: No. My notes are operational, not a full traffic study.

CITY COUNSEL: A presentation ending can produce a movement pattern different from ordinary browsing?

FINCH: Yes. People may stand, move to signing, or return to tables at once.

CITY COUNSEL: So an advance schedule has value?

FINCH: Yes, especially time and expected audience. My disagreement is with using payment and a final author identity as the measure of need.

CITY COUNSEL: If a late addition extended the fair or used amplified sound, you would expect renewed review?

FINCH: Yes.

THE COURT: What physical measures would you accept for the present footprint?

FINCH: A firm vehicle-removal time, cones along the loading edge, a marked service corridor, accessible spacing, signs at the fountain, and moving a signing line away from the narrow approach. If the City supplies a date-specific conflict, we can discuss moving chairs or changing a time.

THE COURT: Does a name assist you operationally?

FINCH: It helps ordinary communication, but a schedule label could identify the slot. I do not place chairs differently because a particular writer is named.

THE COURT: And topic?

FINCH: Format can matter. "Demonstration with a table" tells me something. The plot or argument of a book usually does not.

CITY COUNSEL: No further questions.

GUILD COUNSEL: Nothing further.

THE COURT: You may step down. The City may call its witness.

Testimony of Celia Voss — Direct Examination

COURTROOM DEPUTY: Do you swear or affirm that your testimony will be true?

VOSS: I do.

CITY COUNSEL: State your responsibilities.

VOSS: I direct the Events Division of Parks and Civic Spaces. My office receives applications, checks completeness, coordinates site review, circulates matters when another department may be affected, communicates with organizers, and prepares written permit decisions. I participated in the staff process for Ordinance N-2025-18.

CITY COUNSEL: Why separate applications for recurring dates?

VOSS: Conditions vary. A familiar layout helps, but transit work, construction, another reservation, seasonal use, or personnel availability can differ in April and August. We allow a combined delivery, yet each date requires a decision.

CITY COUNSEL: Explain the forty-five days.

VOSS: Staff discussed thirty, forty-five, and sixty days. Parks thought thirty often sufficient; transportation and police preferred sixty during busy periods. The Council selected forty-five as a uniform midpoint for completeness, circulation, response, and written reasons.

CITY COUNSEL: Why use paid speakers?

VOSS: Compensation is an objective sign that the organizer has arranged a scheduled program, as opposed to incidental conversation. It is not a crowd prediction. Once coverage is established, we examine time, place, attendance, format, and the site.

CITY COUNSEL: Does your office review ideas?

VOSS: No. A functional phrase is enough. We instruct staff not to seek a script, ideology, political affiliation, or position. A prediction that people may oppose lawful speech cannot justify a condition.

Voss — Risk Review and Written Decisions

CITY COUNSEL: How does the documented-risk standard operate?

VOSS: A recommendation must point to an application fact, site condition, comparable-event record, conflict, departmental estimate, traffic assessment, or another identified source. The decision states the concern and explains how a condition addresses it. Staff should choose an adjustment rather than denial when reasonable.

CITY COUNSEL: Give examples without referring to the Guild's viewpoint.

VOSS: Preserve a measured emergency route, move chairs away from the service entrance, end unloading before a presentation, place signs near a bus approach, or coordinate a limited traffic post. A site may be unavailable because a complete earlier reservation controls. Those are operational grounds.

CITY COUNSEL: What has pilot administration shown?

VOSS: One craft market preserved a twelve-foot route after a fire measurement. A food fair moved its stage away from a bus boarding area. An incomplete application received a written omission notice. No pilot application was denied, and no decision discussed a presenter's opinions.

THE COURT: How many complete pilot files?

VOSS: Two complete applications under the form, plus the matter corrected after an omission and one guidance inquiry. It is a small sample.

CITY COUNSEL: How would you approach a late Guild substitution?

VOSS: I would compare the approved slot and plan. If time, duration, location, format, equipment, and audience remain stable, review should be limited. If those facts change, I may need input from another office. The answer must be written.

THE COURT: Is there a mandatory response period?

VOSS: No fixed period in the ordinance. We try to act promptly, but the text does not state a number.

Voss — Fees and Administrative Limits

CITY COUNSEL: Explain the published amounts.

VOSS: The \$240 base amount reflects average intake, completeness checking, site coordination, circulation when needed, organizer communication, and written-decision work. The \$45 increment reflects review of a scheduled presentation and transitions. Financial staff used blended estimates because files vary.

CITY COUNSEL: Are the charges based on controversy?

VOSS: No. Employees cannot alter them according to subject, speaker, expected protest, or popularity. Receipts are credited to permitting administration. Requested officers, barricades, equipment, or extraordinary sanitation require another legal basis and cannot be duplicated.

THE COURT: Do you have time entries showing that each added paid speaker costs \$45 to review?

VOSS: No. Our categories do not isolate each speaker. I cannot say the marginal work always equals exactly \$45.

THE COURT: If speaker six replaces speaker five in the same slot, is there another \$45?

VOSS: Not if the original withdraws and the plan is substantially unchanged. If it is an additional speaker, the schedule adds \$45 even if operational changes are modest.

CITY COUNSEL: Why use averages rather than individual bills?

VOSS: Predictability and uniform treatment. Itemized time accounting would itself take resources and could make costs uncertain. Some applications use less staff time and some more.

THE COURT: Is the base amount imposed on the same event with no paid speakers?

VOSS: Not under this ordinance. Other general reservation or service charges may apply under separate rules. The \$240 amount here is triggered by coverage under N-2025-18.

CITY COUNSEL: No further questions at this stage.

Voss — Cross-Examination

GUILD COUNSEL: Compensation does not tell you expected listeners, correct?

VOSS: Correct.

GUILD COUNSEL: A name does not tell you chair count, sound equipment, or traffic effect?

VOSS: Not by itself. It reliably identifies the scheduled item.

GUILD COUNSEL: A topic such as “historical novel” does not tell police whether Market Lane needs an officer?

VOSS: Not by itself. Time, format, audience, and other conditions do more of that work.

GUILD COUNSEL: The form already asks those direct questions?

VOSS: It asks several of them at event and schedule level, yes.

GUILD COUNSEL: Staff considered covering all scheduled audience programs, paid or unpaid?

VOSS: That option arose. There was concern about reaching informal community speech and defining coverage consistently.

GUILD COUNSEL: Staff also considered an attendance-based fee?

VOSS: Yes. It was thought not to reveal the timing of concentration and could rely on uncertain estimates.

GUILD COUNSEL: Nothing prevents a late request from remaining undecided until the opportunity has passed, does it?

CITY COUNSEL: Objection, argumentative.

THE COURT: Overruled. She may answer about the text.

VOSS: There is no numerical deadline. The written-response requirement assumes staff will act on the request, and I would expect prompt handling. The ordinance does not specify what happens if an opportunity expires first.

GUILD COUNSEL: And the pilot period contains no contested late literary substitution?

VOSS: Correct.

GUILD COUNSEL: So the City cannot offer an administrative history resolving that uncertainty?

VOSS: Not from a completed comparable case. I can describe our intended process.

Voss — Questions from the Court

THE COURT: Director, suppose the Guild reports a replacement ten days before the fair. Same time, same duration, same chairs, same format, same equipment, same expected audience. What risk would the name or literary subject reveal?

VOSS: Ordinarily none beyond accurate identification. Staff would confirm the facts and should be able to approve the change promptly. I cannot bind every circumstance without seeing the file.

THE COURT: Then what is the consequence if the Guild simply labels the slot “reading and questions” forty-five days ahead and supplies the name later?

VOSS: Under the present form, the application would not contain every required paid-speaker name. Staff could issue an omission notice or process the known program and later request, depending on the submission. The ordinance requires the name for completeness.

THE COURT: Does the five-business-day omission notice create a final decision deadline?

VOSS: No. It addresses completeness only.

THE COURT: Could a condition rest solely on the fact that the speaker receives an honorarium?

VOSS: Coverage and the fee can. An operational condition must rest on a documented risk, not compensation alone.

THE COURT: Is there an existing nonprofit waiver for the Guild?

VOSS: I am not aware of an accommodation that would eliminate these published amounts for its applications.

THE COURT: What would be impaired if the Court required direct logistical information but suspended names, subjects, and per-speaker charges for these six fairs?

VOSS: We would lose the ordinance's chosen classification and some stability in referring to planned programming. We could still review much of the physical plan. My concern would be late changes and clarity about what information remains enforceable.

THE COURT: Thank you. You may step down.

Testimony of Lieutenant Rowan Pike — Direct Examination

COURTROOM DEPUTY: Do you swear or affirm that your testimony will be true?

PIKE: I do.

CITY COUNSEL: Describe your assignment.

PIKE: I coordinate police logistics for special events. I compare event plans with patrol obligations, training, court appearances, street conditions, and other scheduled demands. I review vehicle circulation, pedestrian crossings, emergency approaches, and any request for a police post.

CITY COUNSEL: What concerns appear at Cedar Commons?

PIKE: Market Lane loading can overlap with traffic. The fountain-side path and service entrance need clearance. When a scheduled reading ends, some people may move toward signing or transit together. None of that suggests violence. It can still affect whether cones, a crossing presence, or a different unloading cutoff is useful.

CITY COUNSEL: What does the Guild's police history show?

PIKE: No arrest, fight, property damage, or violent report associated with its fairs in the materials I reviewed. Two minor medical calls appear, one for dizziness and one for a curb fall. Event notes describe routinely managed movement and unloading. Dispatch records do not capture every preventive act, and they are not continuous traffic measurements.

CITY COUNSEL: Why does advance information help?

PIKE: Supervisors assign people ahead of time. Forty-five days lets us compare likely peaks with known duties. A simple unchanged plan may take far less time, but late material changes can be difficult after assignments are settled.

CITY COUNSEL: Do you use viewpoint?

PIKE: No. I have no operational reason to know whether an author praises or criticizes anyone.

Pike — Cross-Examination

GUILD COUNSEL: Lieutenant, payment is not a reliable measure of crowd size?

PIKE: Correct.

GUILD COUNSEL: An unpaid local figure could draw a larger audience than a paid visiting writer?

PIKE: That is possible.

GUILD COUNSEL: Which fields matter most to your review?

PIKE: Start time, duration, place, expected listeners, equipment, loading overlap, and nearby activity.

GUILD COUNSEL: Do you need a novelist's plot to assign a crossing post?

PIKE: No.

GUILD COUNSEL: Does each additional paid author require another officer?

PIKE: No. Multiple sessions may create more transition periods, but need depends on the complete schedule and site.

GUILD COUNSEL: Did your department calculate the \$45 amount?

PIKE: No.

GUILD COUNSEL: Have you concluded that the February fair requires an officer throughout the event?

PIKE: No. I have not made that conclusion.

GUILD COUNSEL: Could cones, signs, a fixed unloading cutoff, and marked emergency access address the ordinary conditions in these files?

PIKE: They could address many of them. A date-specific conflict could require something else.

GUILD COUNSEL: If an author changes but the slot and all operational facts do not, would you reopen staffing?

PIKE: I would want confirmation of those facts. If truly unchanged, I would not expect the name alone to change deployment.

GUILD COUNSEL: So the City can protect police planning through direct facts?

PIKE: Direct facts are what I use. I leave the ordinance's coverage rule to policymakers and counsel.

Pike — Questions from the Court

THE COURT: Lieutenant, the City says a lost planning window would be irreparable. What is the latest point at which an unchanged substitution becomes difficult for police?

PIKE: If it is genuinely unchanged, it may not require police action at all. Difficulty arises when the label “substitution” conceals a new time, larger expected group, added equipment, or overlap. I cannot give one number for all changes.

THE COURT: Could a notice form require the organizer to certify those operational facts?

PIKE: Yes. That would make screening easier. Staff might need to verify an estimate or known conflict.

THE COURT: Does a topic ever matter because controversy is expected?

PIKE: Not lawfully. We cannot treat anticipated opposition to a lawful message as the speaker's risk. If the Department receives a specific independent safety report, we address conduct under ordinary authority, not by disapproving a topic.

THE COURT: Is there evidence of such a report here?

PIKE: No.

THE COURT: Does the peaceful history mean the City should do nothing?

PIKE: No. Access and traffic planning are prospective. It does mean our response should be proportionate. I am not recommending a large police detail on this record.

CITY COUNSEL: Does a complete schedule still help you identify transition times?

PIKE: Yes. The more stable and accurate the schedule, the easier it is to compare with other duties.

GUILD COUNSEL: And that schedule could use format and time even if a late name changes?

PIKE: For police purposes, yes, assuming the other facts stay the same.

THE COURT: Thank you. You may step down.

Clarification of Stipulations and Alternatives

THE COURT: Before argument, I want the parties' positions on Joint Exhibit 1. You agree the alternatives are described accurately but do not agree that any particular one is constitutionally required?

CITY COUNSEL: Correct. The City agrees they are intelligible models. Some create their own line-drawing or administrative burdens.

GUILD COUNSEL: Correct. We rely on them to demonstrate feasibility and fit, not to ask the Court to legislate a replacement code.

THE COURT: Consider the direct-schedule alternative: every planned audience presentation, whether paid or unpaid, supplies time, duration, format, location, equipment, and expected listeners. Why is that less burdensome if it regulates more presentations?

GUILD COUNSEL: It regulates operational information rather than attaching fees and early identity to compensation. The submission duty could be limited to events already subject to reservation review, and it need not price each speaker.

CITY COUNSEL: It still expands who must be classified. A volunteer's informal talk and a scheduled program require a boundary. The Council chose a transaction that organizers can verify.

THE COURT: What about the same-slot expedited substitution?

CITY COUNSEL: Workable in many cases, but someone must verify unchanged circumstances. The ordinance gives discretion to do that; it does not fix a deadline.

GUILD COUNSEL: The absence of a deadline is precisely the chill. A certification of unchanged time, place, format, equipment, and audience could create a presumption of approval subject to documented contrary facts.

THE COURT: Neither side asks me to select an attendance number or write a municipal form?

GUILD COUNSEL: No.

CITY COUNSEL: No. If relief issues, it should identify restraints and leave administration to the City.

Guild's Merits Argument

GUILD COUNSEL: Paid author readings are protected speech under *Billups*. Cedar Commons is public property used for expressive gatherings. The City can impose content-neutral time, place, and manner controls, but it bears the burden of showing appropriate tailoring. Its witnesses proved the importance of schedule and site facts; they also proved that the challenged proxies do not supply those facts.

Compensation is an objective line, but objectivity is not fit. It excludes an unpaid presentation that may draw hundreds and burdens a paid writer who draws twelve. Identity is a convenient label, not a risk variable. Literary topic is unnecessary when format states whether there will be questions, chairs, sound, or a demonstration. The \$45 amount is not supported by speaker-specific time data, and the \$240 amount turns on the same paid-speech coverage.

THE COURT: *Ward* says the City need not choose the least restrictive alternative. Why do your examples prove substantial overbreadth rather than merely another reasonable policy?

GUILD COUNSEL: Because the record identifies direct measures already available and contains no evidence that payment, identity, or subject materially advances the interest. In *Billups*, evidence and substantially less restrictive alternatives mattered. Here the City's own witnesses would plan from time, audience, format, and place if names changed.

THE COURT: Does the written-reason requirement narrow the discretion?

GUILD COUNSEL: It helps with a later operational condition. It does not undo the cost, original completeness rule, or lost opportunity while an amendment awaits review. The categories also do not create a prompt decision for an unchanged replacement.

THE COURT: You concede content neutrality?

GUILD COUNSEL: On this record, yes. Our likely-success argument is inadequate tailoring, not secret censorship.

Court's Questions on Guild Relief

THE COURT: If name and topic requirements are enjoined, may Norvale require a unique schedule identifier, format, expected audience, and notice of a late operational change?

GUILD COUNSEL: Yes. Those are direct operational facts. A material change may support a documented condition, but format cannot become an ideological inquiry.

THE COURT: What happens to the \$240 charge and ordinary review costs?

GUILD COUNSEL: N-2025-18 imposes that charge because paid speech triggers coverage. The same physical event already requires ordinary review, and the worksheet does not isolate incremental presentation costs. We do not challenge a comparable neutral reservation fee.

THE COURT: Are unpaid authors, fewer authors, or another site adequate alternatives?

GUILD COUNSEL: No. They exclude writers unable to donate time, reduce speech, or lose the established site and audience.

THE COURT: How is harm irreparable before a denial?

GUILD COUNSEL: The deadline, fee, and uncertain amendment process govern invitations now. Forgone or delayed programming cannot be restored after the opportunity passes.

City's Merits and Winter Argument

CITY COUNSEL: The ordinance regulates event structure, not message. Compensation objectively identifies an organized program; written decisions then turn on physical evidence. Pilot administration shows measured conditions, not censorship.

Cedar Commons has a constrained service approach, fountain-side narrowing, Market Lane loading, and nearby transit. Presentations create transition times. Forty-five days is an interdepartmental compromise, and the averaged fee does not vary with controversy. Narrow tailoring permits imperfect classifications.

THE COURT: What evidence connects the author's name or topic with staffing?

CITY COUNSEL: They identify the organized program and stabilize amendment review. Time, format, and audience do more direct work, but the system also limits topic descriptions and prohibits ideological review.

THE COURT: Why charge another \$45 if no operational fact changes?

CITY COUNSEL: An additional slot requires schedule review. Uniform averages avoid selective billing; a replacement is not charged twice.

CITY COUNSEL: No author was rejected, staff intend prompt review, and no financial proof shows the charges prevent a fair. Broad relief could disrupt planning and obscure what staff may request.

Court's Questions to the City and Guild Rebuttal

THE COURT: *Billups* requires evidence connecting burden and interest. If direct logistical facts do the work, what remains beyond convenience?

CITY COUNSEL: Payment distinguishes planned programming from incidental speech and makes the duty predictable. Names and short labels stabilize the schedule; any restrictive condition still requires evidence.

THE COURT: Could the City accept a provisional schedule identifier at forty-five days and require direct facts?

CITY COUNSEL: The text requires a name. Staff may consider amendments, but a provisional identifier is incomplete.

THE COURT: Does no final denial defeat as-applied relief if the automatic fee and deadline are already operating?

CITY COUNSEL: It narrows ripe injury and weighs against breadth. The payment and deadline are current, but exclusion remains contingent.

GUILD COUNSEL: Payment is easy to observe, not tied to traffic or access. The witnesses identified the narrower line: scheduled operational features. An amendment path without a response deadline or protection for an unchanged slot is inadequate.

THE COURT: If I preserve every direct site control, what irreparable municipal injury remains?

CITY COUNSEL: Loss of the enacted framework and possible late instability. Any order should define permitted information and material-change review.

GUILD COUNSEL: We accept that specificity, not surprise changes or immunity from documented conditions.

Scope, Security, and Submission

THE COURT: I want final positions on Rule 65. Guild counsel, identify the restrained acts without referring me back to the complaint.

GUILD COUNSEL: For these six 2026 fairs, the City would be restrained from conditioning a compensated author's appearance on submission of the person's name or literary topic forty-five days ahead; collecting the \$45 increment or the \$240 assessment solely under the paid-speaker trigger; and rejecting an unchanged late addition merely because the original cutoff passed. The City could still require all listed logistical information and act on documented material risks.

THE COURT: Security?

GUILD COUNSEL: We request nominal security or an express finding that none is necessary. The City has identified no compensable monetary injury from the proposed limited restraint.

CITY COUNSEL: The motion should be denied. If relief enters, the order must say exactly whether the base charge, speaker charge, original application duty, amendment provision, and written conditions remain enforceable. We preserve Rule 65(c). We have not offered a specific bond calculation today because the asserted harm is principally administrative, but the Court should make an express determination.

THE COURT: Both sides shall continue to confer about the February layout while the motion is under consideration. That direction does not signal an outcome and does not alter the ordinance. The Guild should provide accurate operational changes; the City should preserve its written basis for any proposed measure. Are there any further exhibits or requests to supplement?

GUILD COUNSEL: None.

CITY COUNSEL: None.

THE COURT: The admitted record consists of the materials identified this morning, the sworn testimony, and Joint Exhibit 1 subject to its express division between agreements and disputes. The Court appreciates the witnesses' careful concessions. The motion is taken under advisement. A written ruling will follow. Court is adjourned at 3:42 p.m.